

24TRCV04055 24TRCV04055

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Case Number: 24TRCV04055 Hearing Date: August 18, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday, August 18, 2026

Department M Calendar No.

PROCEEDINGS

Michael

P. Barry v. Uber Technologies, Inc., et al.

24TRCV04055

1.

Michael P.

Barry's Motion for Leave to File First Amended Complaint

2. Michael P. Barry's Motion for Protective Order

TENTATIVE RULING

Michael P. Barry's Motion for Leave
to File First Amended Complaint is granted.

Michael P. Barry's Motion for
Protective Order is denied, in part.

Background

Plaintiff filed the Complaint on December 2, 2024. Plaintiff alleges the following facts. Plaintiff was a pedestrian and was struck by a vehicle driven by an Uber driver.

Motion for Leave to Amend

The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading. Code Civ. Proc., §§ 473 & 576. Judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is generally liberally granted. Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. However, the court does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. *Cal. Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281.

The application for leave to amend should be made as soon as the need to amend is discovered. The closer the trial date, the stronger the showing required for leave to amend. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the court has the discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.

Plaintiff moves for leave to amend to file a First Amended Complaint. Plaintiff states that he seeks to add new parties, new causes of action, and new legal theories.

Cal. Rules of Court, Rule 3.1324(a) states: "A motion to amend a pleading before trial must:

(1) Include a copy of the proposed amendment or

amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.” Id. (emphasis added).

Plaintiff adequately complied with Rule 3.1324(a) by providing a red-lined version of the proposed First Amended Complaint.

Cal. Rules of Court, Rule 3.1324(b) requires that the moving party must submit a separate declaration specifying:

“(1) The effect of the amendment;

(2) Why the amendment is necessary and proper;

(3) When the facts giving rise to the amended allegations were discovered; and

(4) The reasons why the request for amendment was not made earlier.”

Plaintiff provided a declaration meeting elements (1) to (4) above. (Decl., Meheir Jahezian, ¶¶ 3-26). Plaintiff has now provided a declaration from his counsel meeting elements 3 and 4, which were missing from the previous motion. In a refreshing and candid manner, Plaintiff’s counsel now admits that all the facts were known, or, at a minimum facts were sufficiently known and available to gather, to Plaintiff on the date of the incident on October 13, 2024. Counsel refreshingly admits that the only reason why the motion was first filed on January 8, 2026 was because current counsel was substituted into this case in December 2025 and current counsel conducted its investigation to find these facts at this time. Thus, clearly, Plaintiff was dilatory from the time between October 13, 2024 and December 2025. The lack of diligence may be attributed to former counsel, at least according to declarant, but, for purposes of this motion, this clearly shows that Plaintiff did not act with

diligence.

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the court has the discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490. While there will certainly be an element of prejudice, the Court determines that the prejudice is not so substantial that a lengthy trial continuance cannot cure. The policy of allowing all claims that Plaintiff may have available outweighs any minimal prejudice that results in this situation. In fact, potentially, the primary prejudice is to Plaintiff himself as any potential redress for any claims that he may have will now probably have to wait for potentially six months or more. The Court notes that between the time this motion was previously set to be heard and now, the trial date was in fact continued to May 4, 2027. Defendant will not be prejudiced by the granting of this motion.

Thus, Plaintiff's Motion for Leave to File First Amended Complaint is granted.

Plaintiff is ordered to file and serve the First Amended Complaint upon parties already existing in this case within 3 days.

An OSC Re: Dismissal for Failure to Serve the Proposed New Defendants is set for _____.

Motion for Protective Order

The

Court is authorized to limit discovery through a protective order. The order may be granted on the motion of any party or other person affected by the discovery sought. CCP §§ 2017.020(a), 2019.020(b), 2019.030(a). A protective order may be obtained to limit the frequency or extent of use of any discovery method on any of the following grounds: (1) "The discovery sought is unreasonably cumulative or duplicative ...; (2) "(The information) is obtainable from some other source that is more convenient, less burdensome or less expensive; (3) "The selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation." CCP § 2019.030(a)(1)-(2).

Code

Civ. Proc., § 2030.090 states:

“(a)

When interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b)

The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1)

That the set of interrogatories, or particular interrogatories in the set, need not be answered.

(2)

That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.

(3)

That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended.

(4)

That the response be made only on specified terms and conditions.

(5)

That the method of discovery be an oral deposition instead of interrogatories to a party.

(6)

That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a certain way.

(7)

That some or all of the answers to interrogatories be sealed and thereafter opened only on order of the court.

(c)

If the motion for a protective order is denied in whole or in part, the court may order that the party provide or permit the discovery against which protection was sought on terms and conditions that are just.

(d)

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Plaintiff

has also moved for a protective order under CCP §§ 2031.060 and 2033.080.

Meet and Confer

Plaintiff

set forth a meet and confer declaration in sufficient compliance with CCP § 2030.090(a), 2031.060(a), and 2033.080(a). (Decl., Meheir Jahezian).

Motion for Protective Order

Plaintiff

moves for a protective order. Plaintiff moves on the grounds that “the Special Interrogatories, Requests for Production, and Requests for Admission are unnecessary, harassing and oppressive in that they are unwarranted given the nature of the incident giving rise to this litigation.” (Notice of Motion, p. 2, lines 9-11). Plaintiff asserts that the number of discovery requests: 224 Special Interrogatories; 103 Requests for Production; 79 Requests for Admissions are unwarranted.

Plaintiff

has the burden of proof on his motion for protective order. Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255. To the extent that Plaintiff is contending undue burden, Plaintiff must submit competent evidence to support this contention. Absent such evidence, the trial court has nothing

“upon which to base a comparative judgment that any responsive burden would be undue or excessive, relative to the likelihood of admissible evidence being discovered.” Williams v. Superior Court (2017) 3 Cal.5th 531, 549-550.

The burden of showing good cause is only met by providing specific facts to demonstrate the alleged oppression, burden, and/or harassment with admissible competent evidence. Goodman v. Citizens Life & Cas. Ins. Co. (1967) 253 Cal.App.2d 807, 819-20.

Plaintiff's

motion for a protective order is denied, in part. The Court determines that Plaintiff has not met his burden of proof on a motion for protective order. Instead, in the initial motion, Plaintiff simply provided a conclusory declaration from Plaintiff's counsel that only outlined the number of the discovery requests but provided no specific information to show how the discovery requests are unnecessary, harassing, oppressive, and unwarranted.

With

the Reply, Plaintiff counsel submitted an additional declaration. This declaration provided more information by arguing that some of the discovery requests seek information regarding fee arrangements, financing arrangements, and other clients. In addition, declarant states that some of the discovery requests are duplicative to other requests. However, without providing specific information and references to the actual discovery requests at issue and providing specific arguments tailored to these discovery requests as to why they are irrelevant, burdensome, or duplicative, the Court cannot make an accurate determination of the alleged oppressiveness of the requests, lack of relevance of the requests, and/or duplicative nature of the requests. Simply attaching the entirety of the discovery requests and responses, and essentially informing the Court to attempt to decipher which discovery requests that Plaintiff is referring to fails to provide competent persuasive evidence to meet Plaintiff's burden.

With

all this being noted, it appears that, after an additional meet and confer process, Defendant has agreed to reduce the number of discovery requests. Thus, the parties' agreement regarding the number of discovery requests to be responded to that were agreed upon during this process should be honored by the parties. In addition, the parties are free to still continue to meet and confer further to narrow the scope of the discovery requests. However, with respect to this motion for protective order, Plaintiff's motion is denied.

Plaintiff's

and Defendant's respective requests for monetary sanctions are also hereby denied.

Plaintiff is ordered to give notice of this ruling.